

Court No. - 7

Case :- WRIT - C No. - 9469 of 2024

Petitioner :- M/S Jalan Jee Polytex(P) Ltd. Thru. Its Director

Respondent :- Electricity Ombudsman, U.P. Lko. And 3 Others

Counsel for Petitioner :- Vishal Dixit, Ashok Kumar Prajapati, Kamlesh Kumar, Neha Sharma, Shalini Singh

Counsel for Respondent :- Sanjay Singh, Amarjeet Singh Rakhra

Hon'ble Pankaj Bhatia, J.

1. Heard the counsel for the petitioner, Sri Sanjay Singh who accepts notice on behalf of the respondent no.1 and Sri Amarjeet Singh Rakhra who accepts notices on behalf of the respondents no. 2 to 4.
2. The present petition has been filed challenging the order dated 27.09.2024 passed by Electricity Ombudsman.
3. The contention of the counsel for the petitioner is that the Consumer Grievance Redressal Forum has rightly directed the recalculation of the demand in terms of provision of clause 5.6(c)(ii) of the U.P. Electricity Supply Code, 2005, but the Electricity Ombudsman erred in deciding the same even against the said order.
4. The matter requires consideration.
5. The respondents may file the counter affidavit within four weeks. Two weeks thereafter for the rejoinder affidavit.
6. List after six weeks.
7. Till the next date of listing, the recovery in pursuance of the two orders shall remain stayed subject to the petitioner depositing Rs.10,00,000/- (Ten Lakhs) before the opposite party no.3 within a period of six weeks.
8. The petitioner shall continue to pay the regular bill as and when raised.

Order Date :- 11.11.2024

VNP/-

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Counsel for Respondent :- Sanjay Singh, Amarjeet Singh Rakhra

Hon'ble Pankaj Bhatia, J.

Three weeks' and no more time is granted to the respondents to file counter affidavit.

List thereafter.

Interim order, if any, shall continue till the next date of listing.

Order Date :- 6.1.2025

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